

Dakshinanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat

High Court of Judicature at Allahabad · Single Bench · 19 May 2016 · Writ-C No. 23243 of 2016 · WRIT - C No. - 23243 of 2016 · **PLA award stayed; listed for admission with connected writ**

HEADNOTE

Prima facie, clause 4.2 of the U.P. Electricity Supply Code, 2005 requires a distribution licensee to extend transformer capacity only if load reaches 80% of installed capacity. A Permanent Lok Adalat award directing an additional 25 KVA transformer for a 7.5 KVA tubewell, where a 100 KVA transformer carried about 54 KVA, was stayed.

FACTUAL SUMMARY

A 100 KVA transformer of Dakshinanchal Vidyut Vitran Nigam Ltd. was supplying several consumers, including respondent no. 2's 7.5 KVA tubewell. The admitted load on the transformer was 77.5 HP (about 54 KVA). The Permanent Lok Adalat, by award dated 12 December 2015, directed the licensee to install an additional 25 KVA transformer for that tubewell. The licensee challenged the award in writ, contending that clause 4.2 of the U.P. Electricity Supply Code, 2005 required enhancement only if load reached 80% of installed capacity.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.2

transformer capacity enhancement

HOLDING

Clause 4.2 of the U.P. Electricity Supply Code, 2005 obliges the distribution licensee to extend transformer capacity if load increases to 80% of installed capacity. Where a 100 KVA transformer carried only about 54 KVA, it did not require enhancement, strengthening or replacement, and the Permanent Lok Adalat's direction to install an additional 25 KVA transformer for a 7.5 KVA tubewell was, prima facie, illegal. Operation of the award dated 12.12.2015 was stayed until further orders, the writ being listed for admission/final disposal with Writ C No. 23246 of 2016. ¶ 1

PRINCIPLE TAGS

no-retrospective-operation-of-supply-code-clause Prima facie, clause 4.2 of the U.P. Electricity Supply Code, 2005 requires a distribution licensee to extend transformer capacity only if load reaches 80% of installed capacity.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FINAL LEGALITY OF THE PERMANENT LOK ADALAT AWARD

Stay granted on a prima facie view; listed for admission/final disposal with Writ C No. 23246 of 2016. ¶ 1